

employment by the attorneys; and (4) the contingent nature of the fee award. (*Serrano v. Priest* (Serrano III) (1977) 20 Cal.3d 25, 49.)

However, our own California Supreme Court has stated, “the trial court is not *required* to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case; moreover, the party seeking a fee enhancement bears the burden of proof.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138. [emphasis original].) This matter was a straightforward lemon law action that was resolved early in litigation. As such, the Court does not find that a lodestar enhancement is appropriate.

Accordingly, the Court awards attorney fees in favor of Plaintiff in the amount of \$9,782.50.

Plaintiff’s memorandum of costs seeks total costs in the amount of \$2,662.95. Defendant seeks to tax the costs in their entirety for Plaintiff’s failure to file a memorandum of costs and for failure to provide support for the claimed costs. Forms MC-010 and MC-011 are optional forms. The memorandum of costs on pleading paper is acceptable. Further, once the verified memorandum of costs is filed it serves as prima facie evidence of the reasonableness of the costs listed. The burden is then of the opposing party to challenge the costs. Here, Defendant did not directly challenge the costs. As such, the request to tax costs is denied. Accordingly, costs are awarded in the amount of \$2,662.95.

Plaintiff is awarded total attorney fees and costs in the amount of \$12,445.45.

Attorney fees and costs are to be paid within thirty (30) days of this Court’s order.

26CV-04534 Elizabeth Nunez vs Evergreen Capital, LLC

Order to Show Cause

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Jury Trials/Long Cause Court Trial
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Tuesday, September 08, 2026
9:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-01458	Richard Morales, Junior vs General Motors LLC
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Order to Show Cause Re: Dismissal - Notice of Settlement

CONTINUED pursuant to the notice of settlement filed August 31, 2026, to December 4, 2026, at 8:15 a.m. in Courtroom 8, to allow time for the terms of the conditional settlement to be performed.
